IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **06.01.2026** THROUGH VIDEO CONFERENCING

PRESENT: **HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)**
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER	**:** CA(CAA)/93(CHE)/2025
PETITION NUMBER	**:**
NAME OF THE PETITIONER(S)	**:** Opexefi Services Pvt Ltd
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**:** Sec 230-232 of CA, 2013

ORDER

Present: Ld. Counsel Shri. R. Inbaraju for the Applicant.

Vide separate order pronounced in Open Court, application is allowed. Meetings are dispensed with.

Sd/-
(VENKATARAMAN SUBRAMANIAM)
MEMBER (TECHNICAL)

Sd/-
(SANJIV JAIN)
MEMBER (JUDICIAL)

MG

Date: 06.01.2026

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

(Under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Amalgamation of Opexefi Services Private Limited and One Box Warehouse Private Limited and their respective Shareholders and Creditors

CA(CAA)/93(CHE)/2025

Opexefi Services Private Limited
(CIN: U68200TN2018PTC126167)
Having Registered Office at
Trend India Business Centre,
Kgeyes Padmalayam, 2nd Floor, Door No.73/7,
Jawaharlal Nehru Road, Ekkaduthangal,
Chennai – 600 032.
Represented by Mr. Abhijeet Shinde, Director

…Applicant Company -1 / Transferor Company

And

One Box Warehouse Private Limited
(CIN: U43299299TN2023PTC164154)
Having Registered Office at
Trend India Business Centre,
Kgeyes Padmalayam, 2nd Floor, Door No.73/7,
Jawaharlal Nehru Road, Ekkaduthangal,
Chennai – 600 032.
Represented by Mr. Abhijeet Shinde, Director

… Applicant Company -2 / Transferee Company

Order Pronounced on ***06th January, 2026***

CORAM

SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
SHRI. VENKATRAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

Present for Applicants : Mr. R. Inbaraju, Advocate

ORDER

(Heard through Hybrid Mode)

1. This is a Joint Company Application Viz., **CA(CAA)/93(CHE)/2025** filed by the Applicant Companies, namely **Opexefi Services Private Limited** (for brevity "Applicant Company – 1 / Transferor Company") and **One Box Warehouse Private Limited** (for brevity "Applicant Company – 2 / Transferee Company") under Section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The Scheme is placed as **Annexure 13** at Page No. 183-200 of the Application.

2. The Applicant Companies in this Company Application have sought for the following reliefs:

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY	Dispense with	NA	Dispense with
TRANSFEREE COMPANY	Dispense with	NA	Dispense with

3. The Rationale of the Scheme is as under:

> *"1. Consolidation of operations along with the land and other assets in a single entity, so as to unlock potential growth of the Real Estate Project;*

2. *Simplification and rationalisation of corporate structure through consolidation;*

3. *Synergies arising out of consolidation of resources which wil lead to efficiency in operations and other functions related to the businesses of the Companies;*

4. *Business and administrative synergies;*

5. *Avoid duplication of efforts; and*

6. *Reduction in multiplicity of legal and regulatory compliances reduction in overheads, including administrative, manageria and other administrative costs."*

4. It is stated that, the Applicant Company-1/Transferor Company i.e. Opexefi Services Private Limited is an unlisted private limited company incorporated on 06.12.2018 with CIN: U74999TN2018PTC126167. The main objects of the Transferor Company are as follows:

"To carry the business of leasing, servicing, design, supply, import, give consultancy, buy and sell or otherwise to deal in all types furniture and fixtures, interior materials, designing materials, office furniture, computer Instruments and all other allied activities."

The authorized, issued, subscribed and paid-up capital of the Applicant Company-1 as on 30.09.2025 are as follows:

AUTHORIZED SHARE CAPITAL	AMOUNT (INR)
1,20,000 Equity Shares of INR 10/- each	12,00,000
Total	**12,00,000**
ISSUED, SUBSCRIBED AND FULLY PAID-UP SHARE CAPITAL	**AMOUNT (INR)**
1,17,648 Equity Shares of INR 10/- each	11,76,480
Total	**11,76,480**

The turnover of the Applicant Company-1 as on 30.09.2025 is Nil and the networth is Rs.588.23 lakhs is placed at Pg.No.81 of the application.

5. The Applicant Company-2 / Transferee Company i.e. One Box Warehouse Private Limited is an unlisted private limited company incorporated on 06.10.2023 with CIN: U43299TN2023PTC164154. The main objects of the Transferee Company are as follows:

> *"To carry on the business of Builders, Construction activities, Contractors, Real estate developers and to carry on the business as to provide rental houses, Warehouses, cold storages, shops, offices, industrial estates, lessees of lands, flats and other immovable properties and for these purposes to purchase, take on lease or otherwise acquire and hold any lands or building of any tenure or description wherever situated or rights or interests therein or connected therewith, to prepare building sites, and to construct, reconstruct, pull down, renovate, develop, alter, improve, decorate and furnish and maintain flats, hotels, malls, educational institutes, hospitals etc. and Sell the same on ownership basis, installment basis lessee basis and rental basis. Operate manage various immovable properties and other real estate assets, and to develop, acquire and invest, either directly or indirectly, in income producing immoveable properties in India and to also undertake development and maintenance of infrastructure projects in all areas of infrastructure including but not limited to facilities such as road, power, water and industrial infrastructure and conveniences which may seem necessary for the purpose of the company and other allied activities."*

The authorized, issued, subscribed and paid up capital of the Applicant Company-2 as on 30.09.2025 are as follows:

AUTHORISED SHARE CAPITAL	AMOUNT (INR)
1,20,000 Equity Shares of INR 10/- each	12,00,000
Total	**12,00,000**
ISSUED, SUBSCRIBED AND FULLY PAID-UP SHARE CAPITAL	**AMOUNT (INR)**
1,17,648 Equity Shares of INR 10/- each	11,76,480
Total	**11,76,480**

The turnover of the Applicant Company-2 for the financial year ended 30.09.2025 is Nil and the networth is Rs.870.95 lakhs is placed at Pg.No.162 of the application.

6. It is stated that this Application has been filed in relation to a Scheme of Amalgamation between Opexefi Services Private Limited (Transferor Company), and One Box Warehouse Private Limited (Transferee Company) along with their respective shareholders and creditors. Both the companies are wholly owned subsidiaries of Lodha Developers Limited.

7. It is stated that, this Tribunal may dispense with the meetings of Equity Shareholders and Unsecured Creditors of the Applicant Companies.

8. The affidavits in support of the above application sworn in, on behalf of the Applicant Companies have been signed by Mr. Abhijeet Shinde in the capacity of Authorised Signatory. The same are placed at Pg. No. 281 – 286 of the application. It is also stated that the registered offices of the Applicant Companies are situated in the State of Tamil Nadu and therefore are within the jurisdiction of this Tribunal.

9. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

10. The Applicant Companies have filed their Memorandum and Articles of Association inter alia delineating their object clauses as Annexures 2 and 7. The Applicant Companies have submitted their last available audited balance sheet as on 31.03.2025 as Annexures 4 and 9. The unaudited balance sheet as on 30.09.2025 as Annexures 5 and 10 of the application.

11. The Board of Directors of the Applicant Companies vide meetings held on 04.11.2025 have unanimously approved the proposed Scheme as contemplated above. The resolution passed thereon is placed as Annexure - 11.

12. The Statutory Auditors of the Transferor Company and Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the Rules made hereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificates of the Statutory Auditors in this regard are placed as Annexure 25.

13. The Appointed date as specified in the Scheme is **01.04.2025**.

14. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues the following directions:

A. IN RELATION TO OPEXEFI SERVICES PRIVATE LIMITED

(TRANSFEROR COMPANY)

I. EQUITY SHAREHOLDERS

(i) There are 2 **(Two)** Equity Shareholders, whose consent affidavits are placed at **Pg. 202-210**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.201** of the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Transferor Company that there are 2 **(Two)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Transferor Company. The Chartered Accountant certifying the list of Secured Creditors is placed at **Pg.211** of the application. Since it is represented by the Transferor Company that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

III. UNSECURED CREDITORS

(i) There are 4 (Four) Unsecured Creditors. The consent affidavits are placed at Pgs. 215-219 and the Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at Pg.213-214 of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) It is represented by the Transferor Company that there are 4 (Four) Unsecured Creditors and 1 has given consent by way of Affidavit. Since the total value of unsecured creditor who has given consent amounts to 99.96% i.e. Rs.7,50,37,144/- out of the total unsecured credit value of Rs.7,50,64,799/- and there is considerable amount of credit value given by 1 unsecured creditor, this Tribunal observes, there is no necessity of convening, holding and conducting the meeting.

B. IN RELATION TO ONE BOX WAREHOUSE PRIVATE LIMITED (TRANSFEREE COMPANY)

I. <u>EQUITY SHAREHOLDERS</u>

(i) There are **2 (Two)** Equity Shareholders, whose consent affidavits are placed at **Pg. 221-229** and the Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.220** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Transferee Company that there are **Two (2)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. <u>SECURED CREDITORS</u>

(i) There are **NIL** Secured Creditors in the Transferee Company. The Chartered Accountant certifying the list of Secured Creditors is placed at **Pg.230** of the application. Since it is

represented by the Transferee Company that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

III. UNSECURED CREDITORS

(i) There are 10 (Ten) Unsecured Creditors. The consent affidavits are placed at Pgs. 234-238 and the Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at Pg.232 of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) It is represented by the Transferor Company that there are 10 (Ten) Unsecured Creditors and 1 has given consent by way of Affidavit. Since the total value of unsecured creditor who has given consent amounts to 99.34% i.e. Rs.20,80,76,307/- out of the total unsecured credit value of Rs.20,94,60,422/- and there is considerable amount of credit value given by 1 unsecured creditor, this Tribunal observes, there is no necessity of convening, holding and conducting the meeting.

15. The Application stands **allowed** on the aforesaid terms. The Applicant Companies are directed to file a Petition for the Second Motion within a period of 14 (Fourteen) days from the date of receipt of this Order.

-Sd- **-Sd-**

VENKATARAMAN SUBRAMANIAN **SANJIV JAIN**
MEMBER (TECHNICAL) MEMBER(JUDICIAL)

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